

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 08/19/2026

Case #	Case Name	Tentative
01411596	Mello - Trust	TENTATIVE RULING Case: Mello - Trust 01411596 Calendar No: 5 Date: 08/19/26 MOTION TO BE RELIEVED AS COUNSEL (ROA 84) Attorney Ross A. Spector seeks to be relieved as counsel for Trustee Kevin H. Mello. Counsel has fully complied with California Rules of Court, Rule 3.1362 and Orange County Local Rule 601.21. The motion is GRANTED. Withdrawal is effective upon filing the proof of service of the signed Order Granting Attorney's Motion to Be Relieved as Counsel.
01411596	Mello - Trust	TENTATIVE RULING Case: Mello - Trust 01411596 Calendar No: 5 Date: 08/19/26 REVIEW HEARING RE STATUS OF STAY (ROAs 66 and 88)

		On 7/16/25, this court granted a Motion for Stay filed by Objector Katie Mello Lutz ("Objector") and issued an order staying the instant trust proceeding pending the resolution of the civil action commenced in the state of Massachusetts or further order of court. (ROA 66.) This ruling was made without prejudice to any party's right to seek an order lifting the stay upon stipulation of the parties or upon a showing of good cause. The court further set a Review Hearing re Stay for 1/14/26. At the 1/14/26 Review Hearing re Stay, counsel informed the court that the Massachusetts action was still pending, and the court continued the Review Hearing to 8/19/26. (ROA 88.) On 8/3/26, counsel for Petitioner Kevin Mello ("Petitioner") filed a Status Report, informing the court that the Massachusetts action is still pending and there are no court hearings scheduled in that action. (ROA 99.) In said Status Report, Petitioner argues that this court may determine the validity of the Decedent's 9/19/21 will in this trust proceeding (rather than in a separate probate proceeding) because (1) there is no probate matter submitting a will, and (2) the trust instrument incorporates the use of a will to determine distribution of trust assets. The court finds such argument persuasive, though it is not currently at issue and, therefore, unopposed. Petitioner further contends in the Status Report that the issue of the validity of the will in question is only before this court. From the court's reading of the verified complaint filed in the Massachusetts action, it appears that Objector challenges the validity of the will in said complaint. (See ROA 14, Ex. A, ¶¶ 15-17.) It is not clear whether Petitioner is requesting that this action proceed on the issue of the validity of the will while the Massachusetts action is still pending. If Petitioner wishes to have the stay or any portion thereof lifted, he should file a noticed motion to lift the stay. Counsel for Objector should be prepared to discuss the status of the Massachusetts action.
01499532	Rodman – Trust	TENTATIVE RULING Case: Rodman – Trust 01499532

Calendar No: 8

Date: 08/19/26

**MOTION TO COMPEL FURTHER RESPONSES TO
REQUESTS FOR PRODUCTION OF DOCUMENTS (ROA
39)**

Petitioner Kevin Craige Kruse moves for an order compelling Respondent Kara Kruse Lee to provide further responses to Requests for Production of Documents, Set One, demand nos. 41 and 42.

On 9/4/25, Petitioner propounded Requests for Production of Documents, Set One, on Respondent. (ROAs 37 and 40, Hamilton Decl., ¶ 8, Ex. B.) After obtaining an extension, Respondent timely served responses on 10/20/25. (ROA 70, Duff Decl., ¶ 6.)

In response to Request Nos. 41 and 42, Respondent responded, as follows:

"Responding party will produce documents responsive to this request." (ROA 31, Pet. Sep. Stmt.)

Code of Civil Procedure section 2031.220 states, as follows:

"A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that **all** documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production." (Emphasis added.)

Petitioner correctly argues that Respondent's responses do not comply with the Code, as they fail to indicate whether Respondent is producing "all" responsive documents. It is unclear from the written responses whether Respondent is complying with the subject request in whole or in part.

After meeting and conferring, Respondent re-produced the responsive documents with a label that more clearly identified which documents are responsive to Request Nos. 41 and 42. (Duff Decl., ¶ 9.) However, Respondent did not serve a further written response.

In her declaration in opposition to the instant motion, Attorney Jeany Duff states that Respondent "has no further documents responsive to request numbers 40 and 41." (Id. at ¶ 10.) However, such statement lacks foundation and personal knowledge; more importantly, the declaration of

		counsel does not cure the defect in the written discovery responses. The Code requires Respondent to swear under oath that she will produce <u>all</u> documents responsive to the requests. Based on the foregoing, the motion to compel further responses to Request Nos. 41 and 41 is GRANTED. Respondent shall serve further responses under oath and without objection, within 10 days of notice of this ruling, extended for method of service. Pursuant to Code of Civil Procedure section 2031.310(h) the court imposes reasonable sanctions of \$3,120.00 jointly and severally against Respondent and her counsel of record, Jeany Duff, payable to Hamilton & Associates, APC within 30 days of notice of this ruling, extended for method of service, or any later date as agreed upon by the parties in writing. Petitioner is ordered to file and serve notice of ruling. [Motion Type]
01447409	Poska - Trust	TENTATIVE RULING Case: Poska - Trust 01447409 Calendar No: 9 Date: 08/19/26 <u>MOTION TO QUASH SUBPOENA (ROA 51)</u> Respondent Kimberly Valentine-Poska filed the instant motion to quash a subpoena issued to Citibank by Petitioners Alexander Poska and Ryan Poska. (ROA 51.) On 11/13/25, Petitioners issued the subject subpoena to Citibank. Petitioners did not serve Respondent with a Notice to Consumer, nor did Petitioners serve Respondent with a copy of the subpoena. On 11/25/25, Respondent received a letter from Citibank's Legal Support Unit advising her of the subpoena. This was the first time Respondent learned of the subpoena. On 11/26/25, Respondent's counsel sent Citibank a letter, raising various objections to the subpoena, including but not limited to, the lack of proper notice and privacy rights. The

		letter also copied Petitioners' counsel and stated that it constituted an effort to meet and confer. On 12/2/25, Citibank informed Respondent's counsel that it would produce the documents on 12/9/25, unless it received a "filed [Motion to Quash] signed from the court" by 12/9/25. On 12/5/25, Respondent filed the instant Motion to Quash. Petitioners' counsel did not respond to the 11/26/25 letter, or otherwise communicate regarding the subpoena, until 6/25/26 - nearly 7 months after the 11/26/25 meet and confer letter and after the instant motion was filed. Ultimately, the parties reached an agreement to narrow and revise the scope of the subpoena. Thus, this motion is going forward only as to the issue of fees. In ruling on a motion to quash, the court "may in its discretion award the amount of reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc. § 1987.2(a); see also <i>Vasquez v. California School of Culinary Arts, Inc.</i> (2014) 230 Cal.App.4th 35, 41 and <i>Evilsizor v. Sweeney</i> (2014) 230 Cal.App.4th 1304, 1311.) The court may award attorney's fees even if the subject subpoena is withdrawn after the motion to quash is filed. (<i>Roe v. Halbig</i> (2018) 20 Cal.App.5th 286, 306.) In their Opposition to this motion, Petitioners argue that sanctions should not be awarded because they "promptly investigated" Respondent's 11/26/25 letter and agreed to revise the subpoena after "confirming the accuracy" of the objections. (ROA 88, 6:9-12.) Petitioners further argue that their delay in meeting and conferring "was reasonable given the complexity of tracing after-discovered Trust assets across multiple financial institutions." (Id. at 7:3-4.) The court finds such arguments unpersuasive. Petitioners offer no reason for the seven months of silence between Respondent's 11/26/25 meet and confer letter and Petitioners' 6/25/26 responsive letter. Petitioners should have withdrawn the subpoena immediately upon realizing their failure to give proper notice thereof to Respondent. At the very least, Petitioners could have requested that Citibank withhold production of documents while the parties meet and confer. Moreover, Petitioners' 6/25/26 meet and confer letter states nothing about the process or results of any course of investigation. (ROA 88, Hamilton Decl., Ex. E.) It seems that
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		the entirety of the letter could have been sent the first week of December 2025. Petitioners further argue that no sanctions should be awarded because of the "very abbreviated meet-and-confer period before Respondent's counsel filed the Motion." (Id. at 7:7-8.) The court finds such argument unpersuasive. It was Citibank that imposed the short time limit for Respondent to file the motion to quash, even over Respondent's objection. (Id. at Ex. D.) Moreover, Petitioners do not address their failure to serve Respondent with a Notice to Consumer or with a copy of the subpoena. Had Petitioners given proper notice of the subpoena to Respondent, Respondent would have had sufficient time to meet and confer before filing a motion to quash. Instead, Respondent had to prepare and file a motion to quash in a short period of time during the holiday season. Finally, Petitioners argue that sanctions should not be awarded because they ultimately narrowed the scope of the subpoena in good faith and because the subpoena was not oppressive or unreasonable. The court is not persuaded. While the subpoena itself may not have been oppressive, the lack of notice, as well as the failure to remedy or explain the lack of notice, does indicate bad faith. Moreover, with proper notice, the subpoena could have been narrowed during the meet and confer process without the necessity of filing a motion to quash. On the record presented, there appears to be no substantial justification (i.e., reasonable basis in law or fact) for opposing the instant motion. The court AWARDS Respondent attorney's fees of \$3,060.00 pursuant to Code of Civil Procedure section 1987.2, payable by Petitioners to Garrett Charchidi, LLP within 30 days of notice of this ruling, extended for method of service, or by any further date as agreed upon by the parties in writing. By stipulation of the parties, the initial subpoena issued on 11/25/26 is ORDERED quashed, and Petitioners may serve Citibank with the revised subpoena attached as Exhibit "I" to the declaration of Jonathan J. Coleman (ROA 88).
01194033	Schmidt - Trust	TENTATIVE RULING Case: Schmidt - Trust 01194033 Calendar No: 6 Date: 08/19/26 MOTION TO STRIKE OR TAX COSTS (ROA 480)

Respondents Christine Wysocki and Kathryn Welton (collectively, "Respondents") have filed a motion to strike or tax the Memorandum of Costs and the Memorandum of Attorney's Fees filed by Petitioner David G. Schmidt ("Petitioner"). (ROA 480.)

On 8/18/26, the court issued a minute order deeming the Memorandum of Attorney's Fees (ROA 462) a motion and setting it for hearing on 11/20/26 at 9:00 a.m. in Department CM05. (ROA 565.) Said minute order also directed that the instant motion proceed only as to the request to strike or tax costs.

Accordingly, this motion proceeds solely as a motion to strike or tax costs.

"Unless it is otherwise provided by this code or by rules adopted by the Judicial Council, either the superior court or the court on appeal may, in its discretion, order costs to be paid by any party to the proceedings, or out of the assets of the estate, as justice may require." (Prob. Code § 1002, emphasis added.)

The right to costs is governed strictly by statute, and courts cannot award costs that are not statutorily authorized (*Wagner Farms, Inc. v. Modesto Irrigation Dist.* (2006) 145 Cal.App.4th 765.) Subdivision (a) of Code of Civil Procedure Section 1033.5 lists items that are allowable as cost, while subdivision (b) lists items that are not allowable as costs. Moreover, subdivision (c)(4) of Section 1033.5 allows the court discretion to award or deny items of costs not mentioned in the statute, but this does not extend to items explicitly disallowed (*Rojas v. HSBC Card Services Inc.* (2023) 93 Cal.App.5th 860).

Pursuant to Probate Code section 1002, the probate court has discretion whether to award costs and how to allocate payment of costs. There is no case law stating the probate court has discretion to award costs specifically disallowed by Code of Civil Procedure section 1033.5(b).

"In ruling upon a motion to tax costs, the trial court's first determination is whether the statute expressly allows the particular item and whether it appears proper on its face; 'if so, the burden is on the objecting party to show [the costs] to be unnecessary or unreasonable.'" (*Foothill-De Anza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29, citation omitted.)

"If the items in a cost memorandum appear proper, the verified memorandum is prima facie evidence the expenses

were necessarily incurred by the defendant; the burden of showing an item is not properly chargeable or is unreasonable falls on the objector." (*Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 858.)

Here, Respondents first seek to strike the entirety of the Memorandum of Costs based on allegations of trial misconduct, discovery misuse, and bad faith conduct warranting sanctions pursuant to Code of Civil Procedure section 128.5. None of these arguments are applicable to a motion to strike or tax costs set forth in a memorandum of costs. Thus, Respondents' motion to strike the MOC in its entirety is **denied**.

Respondents also move to tax the following specific costs:

Item 4 - Deposition Costs

Petitioner requests a total amount of \$40,774.33 in costs for depositions.

Fees for "necessary" depositions are expressly allowable as costs. (Code Civ. Proc. § 1033.5(a)(3).)

Respondents argue that the total amount should be reduced because Petitioner did not prevail on his incapacity claim. Respondent does not specify how the amount should be reduced. Attachment 4E to the MOC lists costs for approximately 20 depositions that were taken. Respondent does not argue that all 20 depositions were taken for the purpose of proving a lack of capacity, nor does Respondent point to any depositions that were taken solely for such purpose. Moreover, Petitioner correctly argues that the issue of capacity is also relevant to the element of vulnerability in the cause of action for undue influence. Thus, the court denies the vague request to "reduce" the total amount.

Nonetheless, fees for expert witnesses not ordered by the court are expressly disallowed by Code of Civil Procedures section 1033.5(b)(1). Respondent argues that costs in the amount of \$2,500 for Dr. Leka's fees should be disallowed.

Accordingly, the court **grants** the motion to tax costs for Item 4 in the amount of **\$2,500**.

Item 11 - Court Reporter Fees Established by Statute

As to costs for court reporter fees, Respondents argue that Petitioner "fails to support the request for \$11,656.00 as established by statute." Such argument is made in

conclusory fashion without any facts, law, or argument offered in support. Thus, the court is not required to consider it. (*Cahill v. San Diego Gas & Electric Co.* (2011) 194 Cal.App.4th 939, 956; *Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934; *In re Marriage of Falcone & Fyke* (2008) 164 Cal.App.4th 814, 830; *People v. Stanley* (1995) 10 Cal.4th 764, 793.)

The motion to tax costs for Item 11 is **denied**.

Item 13 - Models, Enlargements, and Photocopies of Exhibits

Respondents argue that Petitioners failed to prove that the exhibits were used at trial and aided the trier of fact.

As stated above, in ruling on a motion to tax costs, the court determines whether the cost is allowed and if it appears proper on its face. If so, the party objecting to the costs has the burden of showing that the cost is unnecessary or unreasonable. (*Foothill-De Anza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29, citation omitted; *Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 858.)

Here, the costs requested are allowable and appear proper. Respondents have not made any showing that the amount of \$408.18 was unnecessary or unreasonable.

The motion to tax costs for Item 13 is **denied**.

Item 15 - Other

Respondents argue that Petitioner failed to show necessity, reasonableness and authority for subpoena costs of \$5,902.01. Once again, Respondents bear the burden of showing that costs are unnecessary or unreasonable. Respondents have not met that burden. The court exercises its discretion under Code of Civil Procedure section 1033.5(c)(4) to allow such costs.

Respondents correctly argue that fees for experts not ordered by the court, and the costs of postage, telephone, and photocopying (except for exhibits) are expressly disallowed by statute. (Code Civ. Proc. § 1033.5(b)(1) and (3).) Investigation expenses are also prohibited costs. (Code Civ. Proc. § 1033.5(b)(2).) Thus, the court cannot allow Petitioner to recover costs in the amount of \$57,687.50 for expert consultation fees or \$343.42 for miscellaneous other fees that include postage, copy fees, and Data Tree searches.

		The court grants the motion to tax costs for Item 15 in the amount of \$58,030.92. Counsel for Respondents is to ordered to give notice of this ruling.
		TENTATIVE RULING Case: Calendar No.: Date: